



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 12, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202104948 regarding Detective Gary Capellan, Tax No. 950154 (DADS No. 2022-27137)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Detective Capellan will receive no disciplinary action for the singular allegation of threat of force for stating to the complainant "I am going to tase you," and briefly pointing the Conducted Electrical Weapon (CEW) at him. After a review of the entire investigative file, including video evidence, the Police Commissioner has determined that, in this particular incident, Detective Capellan's actions were appropriate.

In this matter, Detective Capellan was part of a team of officers attempting to apprehend the complainant's brother who was wanted for an earlier shooting incident. During the incident, as described by the CCRB Board, the complainant's brother rammed two police vehicles with his own vehicle as the officers moved in to make the arrest. The officers then unsuccessfully attempted to utilize a CEW against the complainant's brother, who trapped one of the officer's arms in his vehicle. As the complainant's brother attempted to reach for a loaded firearm, a second CEW deployment was successful and the officers were able to place the complainant's brother in handcuffs.

The complainant arrived on the scene mere moments after the officers gained some level of control over the complainant's brother. One of the officers interacted with the complainant and told him to stay back as the officers effected the arrest and gained control of the incident. As described by the CCRB investigator, the complainant was belligerent, appeared aggressive, and was not compliant with the officers' orders to stay back from the arrest scene. The complainant approached the officers again, despite the repeated orders to stay back from the still active arrest scene, and continued to yell expletives and obscenities at the officers. Detective Capellan then told

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

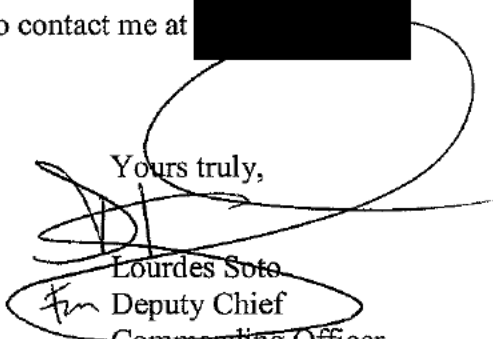
the complainant "I am going to tase you," as he briefly pointed the CEW at the complainant. The complainant then stayed back and the officers were able to secure the complainant's brother in a police vehicle successfully and without further incident. The CCRB investigator found that the video evidence appeared to show that Detective Capellan pointed his CEW at the complainant for approximately one second. It should be noted that, although a crowd had begun to form near the arrest scene, Detective Capellan stated that his only immediate concern was the complainant because he was the only individual who had begun to approach the arrest scene.

The CCRB investigator opined that the video evidence did not show any indication that the complainant was going to interfere with his brother's arrest at the time of the complainant's interaction with Detective Capellan, despite already concluding that the complainant appeared aggressive and opining that merely seconds before the complainant appeared about to encroach on the arrest scene. It is clear from the record that Detective Capellan reasonably believed at the time of his interaction with the complainant, that the complainant was continuing to approach the arrest scene with the intent to interfere with the arrest. The CCRB investigator correctly described the incident as chaotic and stressful for all the officers involved. As evinced by the complainant's actions immediately after the interaction with Detective Capellan, the tactics used by Detective Capellan successfully calmed the situation and the officers were able to secure the scene successfully.

The Police Commissioner finds that Detective Capellan's actions prevented further escalation of an already chaotic and stressful incident. Therefore, based on the foregoing, Detective Capellan will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Force).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto

Deputy Chief

Commanding Officer

Police Commissioner's Office